

Bihar Foodstuffs (Display of Prices by Catering Establishments) Order, 1977

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[Rule BIHAR-FOODSTUFFS-DISPLAY-OF-PRICES-BY-CATERING-ESTABLISHMENTS-ORDER-1977 of 1977](#)

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[Bihar Foodstuffs \(Display of Prices by Catering Establishments\) Order, 1977](#)

[Published vide Notification No. S.O. 1260, dated 17th September, 1977](#)

S.O. 1260, the 17th September, 1977. - Whereas the Governor of Bihar is of the opinion that for the maintenance of supplies and services essential to the life of the community and for securing availability at fair prices of food-stuffs, it is necessary to do:

Now, therefore, in exercise of the power conferred by Section 3 of the Essential Commodities Act, 1955 read with the Order of Government of India in the Ministry of Agriculture published under notification no. G.S.R. 316(E) dated the 30th June, 1972, the Governor of Bihar hereby makes the following Order, namely:-

1.

Short title, extent and commencement.

(1)

This Order may be called the Bihar Foodstuffs (Display of Prices by Catering Establishments) Order, 1977.

(2)

It applies to all towns or cities of Bihar having a population of 50,000 persons and above, mentioned in the Schedule of the Order and such other towns or cities which may be notified from time to time in this regard.

2.

Definition.

(a)

"Catering establishment" means a hotel, restaurant, eating house, cafe, tea shop, coffee house, feeding centre, club, canteen or railway refreshment room and includes any other place of like nature open to the public where food is served, supplied or consumed.

(b)

"State Government" means the Government of the State of Bihar.

(c)

"Commissioner" means the Divisional Commissioner and includes the Food Commissioner, Bihar.

(d)

"District Magistrate" means Collector of the district.

(e)

"Foodstuffs" means any foodstuff kept for sale or service at a catering establishment and includes liquid refreshments and beverages.

3.

Display of prices of food stuffs.

- Every catering establishment shall display at a conspicuous place of its business premises the price of every item of foodstuff kept for sale, service or supply at the catering establishment.

4.

Power to issue direction.

- Every catering establishment shall comply with any directions that may be given in writing by the Commissioner or District Magistrate with regard to the displaying of prices of foodstuffs from time to time.

5.

Power to call for information.

- Every catering establishment shall when so required by general or special directions in writing by the District Magistrate furnish truthfully and to the best of his knowledge such particulars or information relating to foodstuffs as may be required in such directions.

6.

Power of entry, search, seizure, etc.

(1)

The Commissioner, the District Magistrate, Sub-divisional Magistrate, Executive Magistrate, Deputy Director of Food and Civil Supplies, Additional Collector (Supply), District Supply Officer, Assistant District Supply Officer, Rationing Officer, Deputy Rationing Officer, Assistant Rationing Officer, Block Development Officer, Circle Officer, Project Executive Officer, Assistant Project Executive Officer, Marketing Officer, Assistant Marketing Officer, Supply Inspector, Police Officer not below the rank of Sub-Inspector of Police or any other Officer authorised by the State Government in this behalf, may with a view to secure compliance with the various provisions of this Order and for satisfying himself that this Order has been complied with -

(a)

require the owner, occupier or any person incharge of any catering establishment to make any statement or furnish any information or produce any books, accounts or other documents showing transaction relating to foodstuffs and every person so required shall comply with such requisition;

(b)

inspect any foodstuffs, books of accounts or other documents, pertaining to any foodstuffs and for that purpose enter any premises used or believed to be used for preparation, sale, service or supply of any foodstuffs;

(c)

enter, inspect or break open and search any place or premises in which he has reason to believe that any contravention of the provisions of this Order has been or is being committed;

(d)

seize any document or take or cause to be taken extracts from or copies of any documents showing transactions relating to any foodstuffs;

(e)

seize any article, books of accounts or documents which in his opinion would be useful for or relevant to any proceedings under this Order;

(f)

search, seize and remove any foodstuffs together with packages, coverings, receptacles, vehicles or vessels in which the foodstuff is found in contravention of the provisions of this Order and thereafter take or authorise the taking of all measures necessary for securing the production of such foodstuffs and the packages, coverings, receptacles, vehicles or vessels so seized in a court of law and for their safe, custody pending such production.

(2)

The provisions of Section 100 of the Code of Criminal Procedure, 1973 (2 of 1974) relating to search and seizures shall so far as may be, apply to searches and seizure under this clause.

7.

Exemptions.

- The State Government, Commissioner or District Magistrate may by order notified in the Official Gazette exempt any catering establishment or class of catering establishments from the operation of all or any of the provisions of this Order subject to such conditions, if any, as he may deem fit to impose and may at any time in the like manner suspend or rescind such exemption.

8.

Repeal.

- The Bihar Foodstuffs (Display of Prices by Catering Establishments) Order, 1975 will be treated repealed from the date of commencement of the Bihar Foodstuffs (Display of Prices by Catering Establishments) Order, 1977 but repeal of the Order would not affect the pending cases already instituted under the provision of this Order and for this very purpose, the Order would be treated effective.

Schedule

(See Clause 1.)

1. Patna (Patna Municipal Corporation).

2. Biharsharif.

3. Sasaram.

4. Dehri-on-Sone.

5. Arrah.

6. Chapra.

7. Bettiah.

8. Muzaffarpur.

9.

Darbhanga.

10.

Monghyr.

11.

Jamalpur.

12.

Bhagalpur.

13.

Katihar.

14.

Purnea.

15.
Hazaribagh.
 16.
Ranchi
 17.
Jagannathnagar.
 18.
Dhanbad.
 19.
Karkend.
 20.
Bokaro Steel City-cum-Chas Gity Area.
 21.
Jamshedpur.
 22.
Danapur including Danapur Cantonment.
 23.
Begusarai including Barauni.
 24.
Deoghar including Jasidih.
 25.
Hajipur
 26.
Motihari.
 27.
Giridih including Pachamba and its superb.
 28.
Gaya.
 29.
Jharia.
 30.
Sindri Notified Area.
 31.
Chirkunda-cum-Kumardhubi-cum-Dumar Kunda.
 32.
Jorapokhar.
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